

23BBCV01105 23BBCV01105

County: los-angeles

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Case Number: 23BBCV01105 Hearing Date: August 14, 2026 Dept: A

TENTATIVE RULING

AUGUST 14, 2026

(CONTINUED FROM JULY 10, 2026)

MOTION FOR SUMMARY JUDGMENT

OR, ALTERNATIVELY, SUMMARY ADJUDICATION

Los

Angeles Superior Court Case # 23BBCV01105

MP: Defendants LKQ Pick Your Part and Joseph Perez

RP: No opposition received

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and the tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818)

260-8412.

ALLEGATIONS AND RELEVANT

BACKGROUND:

Sheyla

Andia ("Andia") and Patris Sobouti ("Sobouti") (collectively "Plaintiffs") bring this action against LKQ Pick Your Part ("LKQ") and Joseph Perez ("Perez") (collectively "Defendants"). Plaintiffs allege that a vehicle owned by LKQ, and negligently operated by its employee Perez, collided with their vehicle and caused serious injury.

The

Complaint, filed May 17, 2023, alleges: (1) Negligence; (2) Negligence – Statutory Vicarious Liability; (3) Negligent Entrustment; (4) Negligence – Respondeat Superior; and (5) Negligent Hiring, Supervision, or Retention.

On September

12, 2025, the Court granted Defendants' Motion for Terminating Sanctions as against Plaintiff Patris Sobouti only, such that the Complaint as brought by Sobouti was dismissed without prejudice.

The Complaint remains active as brought by Andia only.

MOTION ON CALENDAR:

On March 27, 2026, Defendants filed a Motion for Summary Judgment on Andia's Complaint.

On June 13, 2025, the Court granted Andia's then-counsel's motion to be relieved as counsel. As of the initially set July 10, 2026 hearing date, Andia was a self-represented litigant.

Andia was served with a copy of the motion, but did not oppose the motion in time for the July 10, 2026 hearing.

The Court held the motion hearing on July 10, 2026 and noted that Andia had not filed an opposition; however, Andia attended the hearing and requested additional time to obtain an attorney. The Court continued the hearing to August 14, 2026 to give Plaintiff additional time to retain an attorney and oppose the motion.

As of August 11, 2026, the Court's records reflect that Plaintiff has not filed a Substitution of Attorney form or an opposition to the motion.

The Court is not in receipt of an opposition brief. The Court notes that a failure to file a separate statement of material facts in opposition to the motion can be a basis to grant the motions. (C.C.P. 437c(b)(3); *Buehler v. Alpha Beta Co.* (1990) 224 Cal.App.3d 729, 735 ("Subdivision (b) [of Code of Civil Procedure section 437c] explicitly gives the trial court discretion to grant a motion for summary judgment when an opposing party fails to comply with the requirement of a separate statement...").

LEGAL

STANDARD:

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) C.C.P. § 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998))

68 Cal.App.4th 151, 166.)

ANALYSIS:

Defendants move for summary judgment or, alternatively, summary adjudication, on Andia's Complaint, relying on Andia's deemed admissions to Defendants' RFA, set one.

Defendants' RFAs asked Andia to admit/deny:

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RFA No.1: "Admit that YOUR negligence was the sole cause in causing harm to YOU on the date of the INCIDENT."

.

RFA No. 2: "Admit that YOU have not sought medical treatment for injuries as a result of the INCIDENT."

.

RFA No. 3: "Admit that YOUR negligence was a substantial factor in causing harm to YOU on the date of the INCIDENT."

.

RFA No. 4: "Admit that YOU have not been diagnosed with any injuries as a result of the INCIDENT."

.

RFA No. 5: "Admit that YOUR vehicle was not damaged as a result of the INCIDENT."

.

RFA No. 6: "Admit that YOU have not incurred any damages related to the INCIDENT."

.

RFA No. 7: "Admit that Defendant was not negligent in causing any personal injury to YOU."

(Mot., Ex. A [RFA Requests].)

On February 27, 2026, the Court granted Defendants' Motion to Deem RFAs Admitted against Andia. (Feb. 27, 2026 Minute Order; Mot., Ex. B [Notice of Ruling].)

Defendants provide the following undisputed material facts based on the RFA admissions. Plaintiff's negligence was the sole cause of harm to Andia and substantial factor in causing her harm on the date of the incident. (Fact 1, 3; RFA Nos. 1, 3.) Andia has not sought medical treatment for injuries resulting from the incident or been diagnosed with injuries. (Fact 2, 4; RFA Nos. 2, 4.) Andia's vehicle was not damaged, and she did not incur any damages related to the incident. (Fact 5, 6; RFA Nos. 5, 6.) Defendants were not negligent in causing any personal injury or property damage to Plaintiff. (Fact 7, 8; RFA Nos. 7, 8). Facts 1-8 are repeated for each Issue in summary adjudication for the First to Fifth Causes of Action.

A.

First Cause of Action for Negligence

The elements of negligence are "duty, breach of duty, proximate cause, and damages." (Carlsen v. Koivumaki (2014) 227 Cal.App.4th 879, 892.)

Based on the undisputed material facts, Defendants have shown that Andia admitted that Defendants were not negligent in causing Andia's damages or injuries and that she did not suffer any damages because of the subject incident. As the Negligence elements have been negated, Defendants have upheld their initial burden on the First Cause of Action.

The burden shifts to Andia to raise a triable issue of material fact. As the motion is unopposed, Andia has not done so. Thus, the motion is granted as to the First Cause of Action.

B.

Second Cause of Action for Negligence – Statutory
Vicarious Liability

The Second Cause of Action is premised on the same alleged negligent acts but against LKQ under the theory of vicarious liability for Perez's operation of the vehicle. (See Compl., ¶¶35-40.) The Second Cause of Action is premised upon Vehicle Code, § 17150. (Id., ¶35.)

Vehicle Code, § 17150 states: "Every owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle, in the business of the owner or otherwise, by any person using or operating the same with the permission, express or implied, of the owner."

As this claim is derivative of the Negligence Cause of Action and depends on the underlying finding of Negligence against the driver, the Court finds that Defendants have established their initial burden on this cause of action for the same reasons stated above.

The burden shifts to Andia to raise a triable issue of material fact.

As the motion is unopposed, Andia has not done so. As such, the motion is granted as to the Second Cause of Action.

C.

Third Cause of Action for Negligent Entrustment

"Negligent entrustment is a common law liability doctrine, which arises in numerous factual contexts." (Ghezavat v. Harris (2019) 40 Cal.App.5th 555, 559.) For negligent entrustment of a vehicle, liability is imposed on a vehicle owner/permittee because of his own independent negligence and not the negligence of the driver. (Id.) "Liability for the negligence of the incompetent driver to whom an automobile is entrusted does not arise out of the relationship of the parties, but from the act of entrustment of the motor vehicle, with permission to operate the same, to one whose incompetency, inexperience, or recklessness is known or should have been known by the owner." (Id. [citing Rest. 2nd Torts, § 308 ("It is negligence to permit a third person to use a thing or to engage in an activity which is under the control of the actor, if the actor

knows or should know that such person intends or is likely to use the thing or to conduct himself in the activity in such a manner as to create an unreasonable risk of harm to others”)].)

To establish a claim for negligent entrustment, the plaintiff must prove: (1) the driver was negligent in operating the vehicle; (2) the defendant owned the vehicle operated by the driver/had possession of the vehicle operated by the driver with the owner's permission; (3) the defendant knew, or should have known, that the driver was incompetent or unfit to drive the vehicle; (4) the defendant permitted the driver to drive the vehicle; and (5) the driver's incompetence or unfitness to drive was a substantial factor in causing harm to plaintiff. (CACI 724.)

Defendants argue that without any evidence of negligent operation, Andia cannot maintain a claim for Negligent Entrustment. Defendants rely on the same material facts as above. The Court finds that Defendants have established their initial burden on this cause of action for the same reasons stated above.

The burden shifts to Andia to raise a triable issue of material fact.

As the motion is unopposed, Andia has not done so. The motion is granted as to the Third Cause of Action.

D.

Fourth Cause of Action for Negligence –
Respondeat Superior and Fifth Cause of Action for Negligent Hiring,
Supervision, or Retention

“Under the doctrine of respondeat superior, the vicarious liability of an employer or principal is not based on fault. The liability is imposed as a rule of policy, “a deliberate allocation of a risk,” regardless of the employer's control or fault. [Citations.] The employer's liability is wholly derived from the liability of the employee. The employer cannot be held vicariously liable unless the employee is found responsible.” (Lathrop v. HealthCare Partners Medical Group (2004) 114 Cal.App.4th 1412, 1423.)

“California

case law recognizes the theory that an employer can be liable to a third person for negligently

hiring, supervising, or retaining an unfit

employee. [Citation.] Liability is based upon the facts that the employer knew

or should have known that hiring the employee created a particular risk or

hazard and that particular harm materializes.”

(McKenna v. Beesley (2021) 67

Cal.App.5th 552, 566 [footnote omitted].)

For the same reasons discussed

with respect to the Second Cause of Action, the Court

finds that Defendants have established their initial burden on the Fourth and

Fifth Causes of Action.

The burden shifts to Andia to

raise a triable issue of material fact.

As the motion is unopposed, Andia has not done so. The motion is granted as to the Fourth and

Fifth Causes of Action.

RULING:

In the

event a party requests a signed order or the court in its discretion elects to

sign a formal order, the following form will be either electronically signed or

signed in hard copy and entered into the court’s records.

ORDER

Defendants

LKQ Pick Your Part and Joseph Perez’s Motion for Summary Judgment came on regularly for hearing on August 14, 2026, with appearances/submissions as noted

in the minute order for said hearing, and the court, being fully advised in the

premises, took the matter under submission after argument and now rule as

follows:

the

Motion for Summary Judgment is GRANTED.

DEFENDANTS ARE ORDERED TO LODGE
WITH THE COURT AND SERVE ON PLAINTIFF SHEYLA ANDIA A PROPOSED JUDGMENT WITHIN
TEN (10) DAYS.

THE STATUS CONFERENCE, FINAL
STATUS CONFERENCE, AND JURY TRIAL ARE ADVANCED AND VACATED.

THE OCTOBER 14, 2026 ORDERS TO
SHOW CAUSE RE SANCTIONS FOR PLAINTIFFS FAILURE TO APPEAR ARE ADVANCED AND
DISCHARGED.

ALL OTHER EXISTING DATES ARE
ADVANCED AND VACATED. DEFENDANT IS
DIRECTED TO FILE A PROPOSED JUDGMENT WITHIN 10 DAYS CONSISTENT WITH THIS
RULING. OSC RE PROPOSED JUDGMENT IS SET
FOR AUGUST 25, 2026 (NON-APPEARANCE).

DEFENDANT
LKQ TO GIVE NOTICE.

IT IS SO
ORDERED.